

was promptly arrested on March 9, 2024 after sending the graphic communications. (*Id.* at ¶ 39.) Plaintiffs' general allegations that FSUSD did not investigate LOUIS, concealed his conduct from parents and law enforcement, and held him out as trustworthy do not suffice to state deliberate indifference against the specific allegation that LOUIS was swiftly apprehended. (*Id.* at ¶ 178.) There was no window of time in which FSUSD plausibly could have concealed LOUIS's harassment from law enforcement where LOUIS was arrested by law enforcement immediately after engaging in harassment, for example.

Motion to Strike. Code of Civil Procedure section 436, subdivision (a) permits a court to strike out any irrelevant, false, or improper matter inserted in any pleading, upon a motion or in its discretion. Irrelevant matters are those not essential to the statement of a claim or defense or not pertinent to or supported by an otherwise sufficient claim or defense and demands for relief not supported by the allegations. (Code Civ. Proc. § 431.10.) "The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice;" therefore, a motion to strike may not be based upon extrinsic evidence such as a declaration. (Code Civ. Proc. § 437, subd. (a).)

With no viable Ralph Act or Title IX claim against FSUSD Plaintiffs state no path to recovery of attorneys' fees against FSUSD.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.)

THE PARTES ARE TO APPEAR TO ADDRESS WHETHER LEAVE TO AMEND SHOULD BE GRANTED OR NOT AND THE IMPACT OF ANY RECENT DISCOVERY.

Conclusion. FSUSD's demurrer is sustained. FSUSD's motion to strike the 1AC's prayer for attorneys' fees against FSUSD is granted. No prayers as regards other defendants are ordered struck at this time.

DGDG 18, LLC vs. EBONAE WEBB-POSEY
Case No. CU25-08730

- 1). Motion by DGDG 18, LLC to Confirm Arbitration Award; and
- 2). Motion by EBONAE WEBB-POSEY to Vacate Arbitration Award

TENTATIVE RULING

Absent grounds for revoking of any contract, an agreement in writing to submit disputes to arbitration is enforceable. C.C.P. §1281.

WEBB-POSEY signed the written purchase agreement, and in fact was the party who initiated arbitration of her claims, which later grew to include the cross-claims of DGDG against her.

When a claim is submitted to arbitration, and an arbitration award is issued, a party can petition the court to confirm the award as a judgment under C.C.P. §1285, or petition the court to vacate the award under C.C.P. §1286.2.

The procedure for confirming an arbitration award and for vacating an arbitration has been followed here by the parties. DGDG filed the petition to confirm, per C.C.P. §1285. WEBB-POSEY filed a petition of her own in response, requesting the court to vacate the award, which is authorized by C.C.P. §1285.2. While neither party sought to have a hearing date set for their petitions at time of filing, the court has since rectified that matter, setting both for hearing at the same time.

Judicial review of an arbitration award is very limited, and grounds for vacating arbitration awards are essentially restricted to procedural defects, bias or corruption by the arbitrator, or exceeding their powers, but not substantive errors in applying the law. C.C.P. §1286.2(a).

Errors of law, or claimed insufficiency of evidence to support the arbitrator's award, are not grounds for vacating it.

Arbitration awards are final and conclusive because the parties have agreed they should be so. (Moncharsh, supra, 3 Cal. 4th 1, 10.) "This expectation of finality strongly informs the parties' choice of an arbitral forum over a judicial one. The arbitrator's decision should be the end, not the beginning, of the dispute. [Citation.]" (Ibid.) To ensure the arbitration decision is final and conclusive, only limited judicial review is available. Courts may not review the merits of the controversy, the validity of the arbitrator's reasoning, or the sufficiency of the evidence. (Id. at p. 11.) Indeed, an arbitrator's decision is not generally reviewable for errors of fact or law, even if the error appears on the face of the award and causes substantial injustice. (Id. at p. 6.) "[A]n award reached by an arbitrator pursuant to a contractual agreement to arbitrate is not subject to judicial review except on the grounds set forth in [Code of Civil Procedure] sections 1286.2 (to vacate) and 1286.6 (for correction)." (Id. at p. 33.) Jordan v. Department of Motor Vehicles (2002) 100 Cal.App.4th 431, 443.

An arbitrator can base their award on principles of equity and good conscience, even if that conflicts with the law that courts would apply had the dispute not gone to arbitration.

[A]rbitrators, unless specifically required to act in conformity with rules of law, may base their decision upon broad principles of justice and equity, and in doing

so may expressly or impliedly reject a claim that a party might successfully have asserted in a judicial action." (Sapp v. Barenfeld (1949) 34 Cal.2d 515, 523 [212 P.2d 233]; see also Morris v. Zuckerman (1968) 69 Cal.2d 686, 691 [72 Cal.Rptr. 880, 446 P.2d 1000]; Grunwald-Marx, Inc. v. L.A. Joint Board (1959) 52 Cal.2d 568, 589 [343 P.2d 23].) As early as 1852, this court recognized that, "The arbitrators are not bound to award on principles of dry law, but may decide on principles of equity and good conscience, and make their award ex aequo et bono [according to what is just and good]." (Muldrow v. Norris (1852) 2 Cal. 74, 77.) "As a consequence, arbitration awards are generally immune from judicial review. 'Parties who stipulate in an agreement that controversies that may arise out of it shall be settled by arbitration, may expect not only to reap the advantages that flow from the use of that nontechnical, summary procedure, but also to find themselves bound by an award reached by paths neither marked nor traceable and not subject to judicial review.' (Case v. Alperston (1960) 181 Cal.App.2d 757, 759. ...)" (Nogueiro v. Kaiser Foundation Hospitals (1988) 203 Cal.App.3d 1192, 1195 [250 Cal.Rptr. 478].) Moncharsh v. Heily & Blasé (1992) 3 Cal.4th 1, 10-11.

The justification for this limited review is to honor the parties' desire through arbitration to a quick and inexpensive alternative to litigation, while still allowing for vacating of an arbitration award for certain types of errors infecting the arbitration process itself. Id. at 12-13.

WEBB-POSEY's petition to vacate the arbitration award and/or opposition to DGDG's petition to confirm the arbitration award include a lot of arguments about errors of law, disguised as claims that the arbitrator "exceeded her powers" by ignoring the law WEBB-POSEY claimed to apply to the disputes. WEBB-POSEY also blamed her failure to appear at the arbitration proceedings to two deaths in her family, and two major surgeries she underwent during the course of arbitration, and the arbitrator's refusal to compel discovery. (All are assertions made in WEBB-POSEY's filings, but none are supported by any declaration under penalty of perjury).

The court finds no basis for vacating the arbitration award based on any of these arguments.

The Court addresses DGDG's new petition to confirm arbitration award.

The court has only four options in dealing with a petition regarding a matter which proceeded to binding arbitration and concluded with an arbitration award: (1) confirm the award as a judgment; (2) correct the award and confirm the corrected award as a judgment; (3) vacate the award; or (4) dismiss the proceedings.

Having found no basis for vacating the award, the court considers the other three options.

An arbitrator's award must be intended by the arbitrator to be final, to resolve all disputes presented to them in the arbitration process, except for those that are "potential, conditional or incapable of determination at the time of the [award]." Lonky v. Patel (2020) 51 Cal.App.5th 831, 846.

In general, an arbitrator's award is final if there is no more litigation needed.

"Final" defined: An award is "final" for confirmation purposes if it "resolves all issues submitted to arbitration, and determines each issue fully so that no further litigation is necessary to finalize the obligations of the parties." [Rocket Jewelry Box, Inc. v. Noble Gift Packaging, Inc. (2nd Cir. 1998) 157 F3d 174, 176; IDS Life Ins. Co. v. Royal Alliance Assocs., Inc. (7th Cir. 2001) 266 F3d 645, 650; Norfolk Southern Ry. Co. v. Sprint Communications Co. L.P. (4th Cir. 2018) 883 F3d 417, 422-423—award not final where appraiser reserved assent to award "without prejudice or time limitation" if his assumptions concerning marketable title and values should ever be proven incorrect]

On the other hand, some courts deem an award final if it resolves a separate claim or the liability of a party even if other claims or parties remain in the arbitration proceeding. [Hart Surgical, Inc. v. Ultracision, Inc. (1st Cir. 2001) 244 F3d 231, 233-234; Publicis Communication v. True North Communications, Inc. (7th Cir. 2000) 206 F3d 725, 729; see also IDS Life Ins. Co. v. Royal Alliance Assocs., Inc. (7th Cir. 2001) 266 F3d 645, 650]

An award is final when the "arbitrator himself thinks he's through with the case, then (the) award is final and appealable." [Smart v. International Brotherhood of Electrical Workers, Local 702 (7th Cir. 2002) 315 F3d 721, 725]. California Practice Guide (The Rutter Group 2026), Alternative Dispute Resolution, §5:503.6.

The question presented here is whether the August 29, 2025 arbitrator's award was final even if it contemplated DGDG repossessing the subject vehicle, and with DGDG later asking the court in August 18, 2026 filings for additional late fees, interest, attorneys fees and costs associated with the February 2026 repossession of the subject vehicle and restoring it.

The court finds that it cannot add any new fees or costs to the \$56,238.85 damage amount found in that August 29, 2025 arbitration award. Any fees and costs determinations would be required to be made in binding arbitration, per the language in the arbitration provision requiring arbitration of "any" claims.

If DGDG is willing to waive its claims for new fees and costs, not included in the August 29, 2025 arbitration award, the court could use DGDG's admissions as to \$19,000 in credits due to WEBB-POSEY from the repossession of the subject vehicle on February 25, 2026, to confirm the arbitration award for a total judgment in the amount of \$37,238.85.

Parties are therefore to appear for hearing, with DGDG to advise the court as to whether it prefers to return to arbitration, to seek the new fees and costs it tried to claim in its new petition, or elects to have the court correct and confirm the arbitration award for judgment in the amount of \$37,238.85.

SHARON DAILEY vs. ROSEANN TORRES; ET AL.
Case No. CU26-02756

Defendants' Motion for Order Declaring Plaintiff Vexatious Litigant

TENTATIVE RULING

THE PARTIES ARE TO APPEAR. At the hearing, the Court's tentative ruling is as follows.

Defendants ROSEANN TORRES and TORRES LAW GROUP move for an order declaring self-represented Plaintiff SHARON DAILEY a vexatious litigant, requiring her to post security in the instant litigation, and subjecting her to a prefiling order prohibiting initiation of new legal actions without first obtaining the approval of the presiding judge of the court in which the action is proposed to be filed.

Judicial Notice. The court takes judicial notice under Evidence Code section 452, subdivision (d) of the records of six cases Plaintiff has filed in propria persona federal court and Solano County.

Vexatious Litigant Law. The "vexatious litigant" law exists to curb misuse of the court system by those acting in propria persona who repeatedly file groundless lawsuits or attempt to relitigate issues previously determined against them. (*Garcia v. Lacey* (2014) 231 Cal.App.4th 402, 406.) Code of Civil Procedure section 391, subdivision (b) relevantly defines a "vexatious litigant" as a person who (1) maintains at least five actions in pro per within the preceding seven years and suffers final adverse determinations in each, (2) repeatedly attempts in pro per to relitigate the adversely-determined actions or the validity of the determination, or (3) within a given litigation repeatedly makes frivolous filings or engages in other frivolous and/or delaying tactics in pro per. A vexatious litigant can, upon a defendant's motion, be ordered to post security in order to continue with a case in which there is not a reasonable probability of the vexatious litigant prevailing. (Code Civ. Proc., § 391.1.) A vexatious litigant can also be subject to a prefiling order, on a defense motion or the court's own motion, that prohibits him from filing any new litigation in pro per in this state unless he obtains approval from the presiding judge of the court in which the filing is to occur. (Code Civ. Proc., § 391.7.)

For purposes of determining how many "litigations" a person has maintained within the last seven years, a "litigation" includes an appeal or civil writ proceeding. (*McColm v.*